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Wildlife laws need transformational change

13 July 2023

EDS has released its working paper on the Wildlife Act 1953 as part of its wider project on options for reform of the conservation system. Co-authored by Dr Deidre Koolen-Bourke, Raewyn Peart and Shay Schlaepfer, the working paper canvasses key issues with the Wildlife Act and provides recommendations for new wildlife legislation.

"The Wildlife Act is our main law for protecting and managing wild species, but it is very dated, has significant issues and does not reflect contemporary approaches. It needs to be repealed in its entirety and new wildlife legislation drafted," said EDS Chief Operating Officer Shay Schlaepfer.

"Aotearoa has the highest proportion of threatened species in the world, with around 4,000 species considered threatened with extinction or at risk of becoming threatened. Despite these worrying figures, the Wildlife Act treats common backyard species the same as those on the brink of extinction.

"This is a significant failing of the law and puts Aotearoa well behind international best practice in the way we protect, manage and recover threatened species. New wildlife

legislation needs to urgently fill this gap.

“It is vital that all indigenous and threatened species are clearly included in the legislation and explicitly prioritised. Currently, entire taxonomic groups of indigenous species are not protected by the Wildlife Act, such as plants, freshwater fish and all non-scheduled marine species and invertebrates. That needs to change.

“The Wildlife Act does not give effect to the principles of Te Tiriti o Waitangi and its requirement that Māori get permission on a case-by-case basis to use taonga species is a significant issue that also needs rectifying.

“The extent to which the use of indigenous wildlife is enabled in new wildlife legislation requires a national conversation. To minimise ongoing inequities between different users of wildlife, new legislation will need to re-set how it enables the use of wildlife at place across all sectors and domains – customary, social, commercial, and marine and terrestrial.

“Further, introduced species have been allowed to persist, to the detriment of indigenous and sometimes threatened, flora and fauna. In new wildlife legislation, the management of highly valued introduced species, such as deer and trout, should be linked to the maintenance of indigenous biodiversity values. This might require a reduction in numbers of introduced species in certain areas.

“The Government has announced its intention to modernise conservation laws and has earmarked the Wildlife Act as being first up for review. We support that approach and encourage the Government to stay the course and proceed with new wildlife legislation. Our imperilled wild species urgently need it,” concluded Ms Schlaepfer.

A copy of the working paper can be found [here](#).

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